



Academic Freedom Policy

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Policy group	Academic Management
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External reference points	- Education (No. 2) Act 1986, Section 43 (Freedom of Speech) - Education Reform Act 1988, Section 202 (Academic Freedom) - Higher Education (Freedom of Speech) Act 2023 - OfS Public Interest Governance Principle I: Academic Freedom

Version Control			
Previous Version	New Version	Date	Update/Notes
V5 (28-11-24)	V6	15-04-25	Added version control table. Updated the External Speaker Approval Form in the Appendix.
V6 14-04-25	V7	15-04-26	Annual review with a few updates to the legislation references and a few corrections to typos.

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1. Purpose

The purpose of this policy is to ensure that academics and students at Trent Education Centre (TEC) feel able to exercise academic freedom without fear of negative reprisals, such as being dismissed from their job, losing chances for promotion or any other benefits that they might otherwise have been entitled to or considered for. This policy ensures that TEC complies with the Education Reform Act 1988 Section 202 and the Office for Students' public interest governance principle I on Academic Freedom. In accordance with this principle, all academic staff and students at TEC:

"have freedom within the law to question and test received wisdom, and to put forward new ideas and controversial or unpopular opinions, without placing themselves in jeopardy of losing their jobs or privileges they may have at their institutions"

TEC believes that academic freedom is an essential prerequisite for rigorous academic study and development, and it forms an essential element of TEC's learning, teaching and assessment strategy. TEC intends to create an environment where challenging assumptions of orthodox views through academic enquiry and critical thinking are proactively encouraged. This extends to the legal expression of views which other people may disapprove of or dislike.

TEC also recognises its duties under the Higher Education (Freedom of Speech) Act 2023, which strengthens protections for lawful speech and academic freedom within higher education settings.

2. Scope

This Policy applies to all staff, students, and stakeholders at TEC, whether employed permanently, temporarily or in an advisory capacity. It also applies to external visitors that may be invited to speak at TEC. It is designed to provide academic staff with reassurance and guidance on how academic freedom is encouraged, supported and protected at TEC. Students also have the right to academic freedom within the law, including the freedom to question, test, and debate ideas without fear of academic disadvantage.

This policy should be read in conjunction with the TEC Freedom of Speech Policy, which relates to the right to free speech more broadly for every stakeholder at TEC. In particular, the Course Committees and Student Council will report on their ability to debate ideas freely to the Academic Board, which reports on Academic Freedom to the Board of Governors.

The Operations Committee and Marketing & Business Development Committee report on Freedom of Speech in general to the Senior Management Team, which reports to the Board of Governors. See the Freedom of Speech Policy for more details.

3. Responsibilities of Academic Freedom

Academic freedom comes with responsibility for staff and students to avoid discrimination, be inclusive and tolerant of opposing views and maintain high standards of academic integrity. Academic staff are required to treat students fairly and equitably. Academic staff are expected to respect each other's opinions and to foster an atmosphere of free and open debate. When expressing an academic opinion, staff should be clear that they are not expressing an opinion of TEC. Academic staff should also commit to the following:

- Attempt to provide students with the broadest possible range of views about any topic
- Encourage students to engage in the free exchange of ideas with staff and their colleagues
- Avoid conflicts of interest by making appropriate disclosures if necessary
- Be fair and impartial when appraising the ideas of others

Academic freedom does not exempt staff or students from maintaining academic standards, adhering to assessment regulations, or meeting professional conduct expectations.

4. External Speakers

TEC is committed to ensuring that external speakers with a range of views are allowed to speak at events hosted at TEC Study Centres. Despite this, TEC will comply with its prevent duty, which means that any external speaker will be vetted to ensure they do not pose a risk of encouraging extremism. TEC will impose minimal restrictions on events and activities that students and staff wish to run at TEC, including the invitation for guest speakers to appear. The following conditions will be required:

- Any event involving external speakers will be reviewed and approved by the designated Prevent Lead or Safeguarding Lead, who will report outcomes to the Academic Board.
- All external speakers will be subject to Safeguarding and Prevent checks before being permitted to participate in events or activities at TEC. These checks will consist of proportionate online searches and risk assessments, in line with TEC's Prevent Duty procedures.

5. Practicing Academic Freedom

TEC will practice Academic Freedom through the following:

- Hosting events including debates and inviting a range of speakers with different views
- Ensuring that teaching and assessment materials encourage critical thinking in students
- Encouraging student engagement with academic decision making through representation on the Academic Board
- Providing ethical oversight of research practices through the TEC Research Ethics Committee (REC).

6. Code of Practice

All members of staff have the right to express opinions which may be considered annoying or offensive, as long as they are not unlawful. Unlawful speech includes incitement to violence, harassment, discrimination, or the promotion of terrorism or extremist ideology, as defined by UK law.

It is generally considered a breach of this code of practice for any person at TEC to take steps against another person due to lawful expression of their opinion, apart from non-violent persuasion.

All staff must comply with the Counterterrorism and Security Act 2015, and the Equality Act 2010, to ensure that they do not promote extremism or discrimination. TEC would also urge all its stakeholders to exercise respect, tolerance and kindness to others. At all times, TEC's priority will be the safety, health and well-being of its students, employees, other stakeholders and visiting members of the public.

No member of staff or student will face disciplinary action for the lawful expression of academic or political views, even where such views may be controversial or unpopular.

TEC - External Speaker Approval Form

To be completed by staff wishing to invite a guest speaker to TEC to speak to students.

External Speaker Approval Form			
TEC staff member completing this form			
Date completing this form			
External speaker's full name			
Organisation/affiliation			
Proposed topic for the event			
Date and time for the event			
Who will be invited to attend			
Answer the Questions			
There is no reason to believe this person is unsuitable to come and speak at TEC	Yes ☐	No ☐	
TEC has a copy of the speaker's CV, passport ID and proof of address			
The speaker is competent to speak on the proposed subject based on experience or qualifications			
The speaker has been briefed on TEC's safeguarding and Prevent expectations by a qualified TEC staff member			
The speaker has read the TEC Academic Freedom Policy			
Please comment on the reason for inviting the speaker to TEC?			
Approved by Academic Board Member	Yes ☐	No ☐	
Name of Academic Board Member			
Signature		Date	